STANDATA interpretation 23-BCI-016

Building

Barrier-free design requirements: relaxations

Date Issued: March 2025

Superseded

Purpose

To clarify when a request for relaxation of barrier-free requirements is appropriate, and provide exempted building uses where a relaxation request is not required.

Discussion

The Provincial Barrier-Free Administrator and Provincial Building Administrator are receiving barrier-free relaxation requests that are either not appropriate for relaxation or lack the required review by the authority having jurisdiction (AHJ), i.e. accredited municipality or agency, during the building permit application stage.

The Provincial Building Administrator and the Provincial Barrier-Free Administrator have the authority to grant or refuse a relaxation, in accordance with Article 2.2.1.4. of Division C of the National Building Code – 2023 Alberta Edition (NBC(AE)). Barrier-free relaxations may be issued where compliance with barrier-free design requirements are unnecessary or extraordinary circumstances prevent conformance with the requirements. These two situations may be appropriate for a relaxation provided the applicant has demonstrated to the satisfaction of the Provincial Building Administrator or Provincial Barrier-Free Administrator that valid conditions exist to support a relaxation of barrier-free requirements.

Applications for barrier-free relaxations will not be accepted by Municipal Affairs for new building construction required to comply with barrier-free design requirements under the NBC(AE).

New construction refers to the creation of a completely new building that has not been previously occupied or used. It also applies to spaces that are being created (i.e., CRUs) or utilized for the first time (no prior tenants) within the “building envelope.”

Applications for barrier-free relaxations containing incomplete plans/drawings will not be reviewed by the Provincial Building Administrator or Provincial Barrier-Free Administrator.

Barrier-free relaxations will not be issued for the applicant (i.e., owner or designer) to lower construction costs or to avoid the activity of evaluating more difficult design alternatives.

Exempted building uses from Barrier-Free Design and Access Requirements

Sentence 3.8.2.1.(1) of the NBC(AE) specifies that barrier-free design requirements apply to all buildings, but also provides exemptions. New construction, the change in use or occupancy of an existing building, or an

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addition/alteration to an existing building is required to comply with barrier-free design requirements, unless it qualifies for one of the listed exemptions.

Barrier-free design requirements do not apply to certain industrial uses, which pose greater danger to persons and property from the use of hazardous materials and processes. Some special purpose buildings in heavy industries often require grade separations and other features essential to their functioning that are not compatible with barrier-free design and access. Other special purpose buildings may be partially exempt from barrier-free design requirements, such as certain industrial uses requiring barrier-free design for persons with hearing or visual disabilities but not for persons with physical disabilities.

Exemptions are listed in Sentence 3.8.2.1.(1) under "Exceptions," Sentence 3.8.2.3.(2) under "Areas Requiring a Barrier-Free Path of Travel," and Sentence 3.8.2.8.(12) under "Showers."

In addition to the exemptions listed in the NBC(AE), this STANDATA serves to provide further exempted building uses.

Superseded

Code References

Division C, Sentence 2.2.1.4.(1)

2.2.1.4. Barrier-Free Relaxations
1) *The Provincial Barrier-Free Administrator* and *Provincial Building Administrator* may grant relaxation of one or more of the requirements of Section 3.8. of Division B if an owner can demonstrate to the satisfaction of the *Provincial Barrier-Free Administrator* or *Provincial Building Administrator* that
a) the specific requirements are unnecessary, or
b) extraordinary circumstances prevent conformance.

Sentence 3.8.2.1.(1)

3.8.2.1. Exceptions (See Note A-3.8.2.1.)
1) The requirements of this Section apply to all *buildings* except
a) detached houses, semi-detached houses, houses with a *secondary suite*, duplexes, triplexes, townhouses, row houses and boarding houses that are not used in social programs (see Note A-1.4.1.2.(1) of Division A, Secondary Suite),
b) *buildings* of Group F, Division 1 *major occupancy*,
c) *buildings* that are not intended to be occupied on a daily or full-time basis, including automatic telephone exchanges, pumphouses and substations, and
d) relocatable industrial accommodations.

A-3.8.2.1. Accessibility. Industrial buildings often pose a greater risk to their occupants due to the presence of significant quantities of dangerous materials or the use of hazardous processes. For example, plants which are classified as Group F, Division 2 or 3, may store and use toxic or highly flammable substances in significant quantities, or house processes which involve very high temperatures and which have a high degree of automation. In some facilities, particularly in primary industries such as forestry and metallurgy, the construction normally used and the operations carried out within the space can make compliance with the requirements of Section 3.8. impracticable. It is therefore intended that these requirements be applied with discretion in buildings of Group F, Division 2 or 3 major occupancy. However, where industrial buildings contain subsidiary occupancies, such as offices or showrooms, it is reasonable to require that accessibility be provided in these spaces.

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Application

Exempted building uses from barrier-free design and access requirements.

Interpretation

1. If a building project is assessed by the AHJ or safety codes officer (SCO) as exempted use under the NBC(AE), an application for a barrier-free relaxation to Municipal Affairs is not required.

Sentence 3.8.2.1.(1) of the NBC(AE) allows the AHJ or SCO the discretion to assess building projects as exempt or partially exempt from barrier-free design requirements, provided the building project meets the conditions described under Sentence 3.8.2.1.(1).

2. The following occupancies or uses may be assessed by the AHJ or SCO as applicable exempted uses in addition to those currently described in the NBC(AE), and also do not require an application for a barrier-free relaxation to Municipal Affairs:

- fire and emergency medical services (EMS) dormitories, including washrooms and showers;
- industrial buildings used for heavy equipment maintenance and/or storage;
- workers' accommodations or camps located on industrial sites such as drilling, forestry, or mining sites;
- waste management facilities;
- abattoirs;
- recycling centres – operations/sorting areas;
- food/beverage service kiosks;
- limited-use, limited-access washroom facilities, such as in transit turnarounds; and
- temporary structures where barrier-free design requirements are demonstrated to be unnecessary to the AHJ or SCO.

This INTERPRETATION is applicable throughout the Province of Alberta.

Superseded

Unless stated otherwise, all Code references in this STANDATA are to Division B of the National Building Code – 2023 Alberta Edition

Issued by the Provincial Building Administrator and the Provincial Barrier-Free Administrator

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